swayed by A.P.J. Abdul Kalam the human being. No untoward considerations, such as the possibility of the outbreak of rage in the wake of a blatantly unfair execution, or the simple injustice of a man being killed for being trapped in circumstances that were totally beyond his control, must be allowed to stay the President's or the hangman's hand. He has listened to Afzal's son and wife. He has given them his time, and that shows how magnanimous the Indian State can be, and now, he must say no. Afzal must die.

We do not need a reminder of the fact that Afzal's alleged involvement in the planning of this attack is the only reason why he is being sentenced to die. Unlike other instances of the award of capital punishment, where the accused are likely to be people who have actually killed other people in particularly heinous ways, Afzal is accused only of being an actor in a conspiracy, a cog in the wheel of terror. His was not a hand that held a gun on that day. He fired no shots, killed no one. He was caught because his phone number was in the phone directory in one of the mobile phones found on the person of one of the dead terrorists. In a letter written to his Supreme Court defence lawyer, Afzal points out that his mobile phone also has numbers of STF personnel, and the same logic by which he is implicated in the conspiracy of 13 December should logically lead to an investigation of the STF personnel's role in the event.

If that is so, then it would be natural for us to expect that all leads as to who else may be implicated in this conspiracy would have to be exhausted before any one of the conspirators or actors (in this case Afzal) is given the ultimate punishment. We know that Afzal did not have adequate legal representation in the course of his trial, but we also know that he made statements that the court took note of, in the sense that they are in the court records, which include statements that implicate officers of the STF in Jammu and Kashmir. These are public documents, and they have been meticulously collated in Nirmalangshu Mukherjee's courageous and disturbing book on the 13 December case (*December 13: Terror over Democracy*).[4] This book is available at any good bookshop in Delhi, and I am amazed that the media has not in fact made more of this story than it has.

Perhaps, once again, phone calls from the Intelligence Bureau and the Home Ministry to editorial offices of newspapers and television channels have done their job. That is the charitable explanation, that the majority of the media has acted out of fear. The uncharitable explanation is that the media is